

BETTENCOURT v NORCAL GOLD dba RE/MAX GOLD, et al

23CV47084

**NORCAL GOLD'S DEMURRER TO
SECOND AMENDED COMPLAINT**

This matter involves a residential real estate dispute between Plaintiff Darren Bettencourt ("Plaintiff") and Defendants Norcal Gold, Inc. dba Re/Max Gold ("Gold"), Traci Hatt ("Hatt"), Kirk Kercielich ("Kercielich"), Arlene Vierra ("Vierra"), Anne Almeida ("Almeida") and Powerhouse Realty ("Powerhouse").

Now before the Court is a demurrer brought by Gold and Hatt (collectively "Moving Defendants") against Plaintiff's Second Amended Complaint ("2AC.")

It is not the Court's role to point out counsel's procedural errors; however, the Court notes that there are numerous procedural shortcomings here. First, the demurrer filed by Moving Defendants on July 6, 2026, was premature, as Plaintiff—despite apparently having served the 2AC on the at least some of the other parties—did not untimely file it with the Court until August 31, 2026! The proof of service attached to the demurrer shows that the demurrer was sent to Plaintiff's counsel at an address in Dos Palos, California [!] but Plaintiff's counsel's address is in Merced, California. Plaintiff failed to serve his opposition on pro se defendant Kirk Kerchelich, which is notable, and ironic given Plaintiff's entire opposition is based on improper service by Moving Defendants.

Given the inordinate number of procedural issues, the matter is dropped from the Court's calendar. The demurrer is not ruled upon, with leave to refile within the appropriate timeframe based on the filing of the 2AC on 8/31/26. Counsel are admonished to pay closer attention to detail and the rules of Civil Procedure and of this Court.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required with regard to this Ruling.

SANCHEZ v SENDER'S MARKET, INC., et al

24CV47302

**PLAINTIFF'S MOTION FOR LEAVE
TO FILE AMENDED COMPLAINT**

This is a breach of contract claim brought by Cynthia Sanchez ("Sanchez") against Slakey Brothers ("Slakey"), Sender's Market ("Market") and Roth Industries, Inc. ("Roth.")

Now before the Court is Sanchez's motion for leave to file a First Amended Complaint ("FAC.") Slakey and Roth have both filed oppositions.

The motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]